

1868

SCOTT
v.
STANSFIELD.

Manisty, Q.C., contra. The decisions cited are inapplicable to the present case. For it was not alleged in any of those cases, that the judge had said, maliciously and without reasonable cause, what was altogether irrelevant to the matter before him. In Addison on Torts, 2nd ed., p. 547, the law is thus laid down: "A judge, therefore, is not answerable for slander spoken by him in the exercise of his judicial functions in reference to a matter before him; but, if he goes out of his way to make slanderous attacks on the character of private persons in respect of matters not before him, and into which he has no jurisdiction to inquire, he will be responsible, like any other individual, for the consequences." The cases cited in support of that proposition are *Lewis v. Levi* (1), and *MacGregor v. Thwaites* (2); but, it must be admitted, they do not go far enough to support the plaintiff's contention. It is, however, clear, that the fact of a judge's having jurisdiction to try a particular case will not justify his going out of his way, and, with reference to a subject wholly irrelevant, making falsely and maliciously slanderous statements affecting private character. It is then just as if he were not acting in his judicial character at all. He cannot abuse his office for the purpose of doing with impunity, under colour of it, that which has no connection with it and which in a private individual would be actionable. In the case of *Houlden v. Smith* (3), it was held, that a judge of a county court is answerable for an act done by his command, when he has no jurisdiction, and is not misinformed as to the facts on which jurisdiction depends.

KELLY, C.B. I am of opinion that our judgment must be for the defendant. The question raised upon this record is whether an action is maintainable against the judge of a county court, which is a court of record, for words spoken by him in his judicial character and in the exercise of his functions as judge in the court over which he presides, where such words would as against an ordinary individual constitute a cause of action, and where they are alleged to have been spoken maliciously and without probable cause, and to have been irrelevant to the matter before him. The ques-

(1) 27 L. J. (Q.B.) 282.

(2) 3 B. & C. 24.

(3) 14 Q. B. 841.

22 B. & C. 253; 4 Jur. Rep. 970